

Indian Wireless Telegraphy (Amateur Service) Rules, 1958

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Union of India - Act

Indian Wireless Telegraphy (Amateur Service) Rules, 1958

UNION OF INDIA

India

Indian Wireless Telegraphy (Amateur Service) Rules, 1958

Rule INDIAN-WIRELESS-TELEGRAPHY-AMATEUR-SERVICE-RULES-1958 of 1958

Published on 24 September 1958

Commenced on 24 September 1958

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Indian Wireless Telegraphy (Amateur Service) Rules, 1958

Published vide Notification Gazette of India, 1958, Part 2, Section 3(i), p. 904

1720.

G.S.R. 939, dated the 24th September, 1958. - In exercise of the powers conferred by sections 4 and 7 of the Indian Telegraph Act, 1885 (

13 of 1885

), and in supersession of all existing orders on the subject, the Central Government hereby makes the following rules for the conduct of Wireless telegraph transmitting and receiving stations, in the amateur service, established, maintained or worked in India by persons licensed under the said, Act.

Rules

1.

Short title and commencement.

- (i) These rules may be called the Indian Wireless Telegraphy (Amateur Service) Rules, 1958.

(ii)

They shall come into force on the 1st day of January, 1959.

2.

Definitions.

- In these rules, unless the context otherwise requires :-

(i)

"amateur service" means a service of self training, intercommunication and technical investigations carried on by amateurs that is by persons duly authorised under these rules interested in radio technique solely with a personal aim and without pecuniary interest;

(ii)

"amateur licence" means a licence for a type of wireless telegraph transmitting and receiving station in the amateur service;

(iii)

"wireless telegraphy" or "radio telegraphy" includes wireless telephony or radio telephony.

3.

Necessity for licence.

- No person shall operate an Amateur wireless telegraph station except under and in accordance with the terms and conditions of the appropriate licence under these rules.

4.

Categories of Amateur Licenses.

- There shall be two categories of licences in the amateur service, namely :

(i)

Amateur Wireless Telegraph Station Licence, Grade I;

(ii)

Amateur Wireless Telegraph Station Licence, Grade II.

5.

Application for licence.

- Every application for a licence, whether Grade I or Grade II, shall be made to the Central Government in Annexure I and shall be accompanied by an undertaking to the effect that the transmitting apparatus shall be operated in accordance with these rules and that the installation shall not be made accessible to any unauthorised person at any time.

6.

Eligibility for licence.

- A person who -

(a)

is a citizen of India,

(b)

is not less than 18 years of age, and

(c)

is in possession of valid first, second or special class Radio Telegraph Operator's Certificate and Licence, or a non-commercial certificate of competency issued by the Director General, Posts & Telegraphs or the Central Government or has passed the examination for Amateur Station Operators' Certificate, Grade I or Grade II, as the case may be.

shall be eligible for a licence :

Provided that :

(i)

The Central Government may grant a licence to nationals of foreign countries subject to such conditions as it may determine;

(ii)

["applications for the grant of licences from bona fide experimenters between the ages of 16 and 18 years in the case of Grade I, and 14 and 18 years in the case of Grade II, may be considered.]

[Substituted by G.S.R. 883, dated 26.5.1967]

If they are accompanied by a certificate from the head of the educational institution attended by the candidate or from his legal guardian that the applicant is interested in and competent to conduct experiments in wireless telegraphy and if they are otherwise qualified;

(iii)

a Grade II license shall not be granted to an amateur club.

*The syllabi for the examinations for both the grades of the certificate are printed as Appendix I and Appendix II.

7.

Grant of Licence.

- Every licence, Grade I or Grade II, shall be in the form in Annexure II.

8.

[Period of Validity.

[Substituted by G.S.R. 883, dated 26.5.1967]

- A licence granted under these rules shall be valid upto the 31st December of the year mentioned in the licence.]

Provided that licence issued between the 1st November and the 31st December of any year shall be valid up to the 31st December of the following year.

9.

[Fee.

[Substituted by the G.S.R. 883, dated 26.5.1967]

- A fee of -

(i)

Rs. 15.00 shall be payable for a licence per year or portion thereof in Grade I and Rs. 10.00 for a licence per year or portion thereof in Grade II.

(ii)

Rs. 42.00 shall be payable for a grade I licence in case the applicant desires the same for a period of three years.]

The fee shall be paid to the Central Government on receipt of instructions from that Government and in the manner directed by it. No holder of a licence shall be entitled to a refund of fees paid therefor on the ground of his inability to make full use of the license.

10.

Renewal of licence.

- A licence may be renewed for one year at a time on payment of a fee of Rs. 15 of Rs. 10 [A Grade I licence may also be renewed for a period of three years on payment of a fee of Rs. 42.00]

[Substituted by G.S.R. 883, dated 26.5.1967]

. An application for renewal shall be made at least one month before the expiry of the licence and the fee shall be paid along with the application. It shall not be obligatory for the Central Government to send a notice to the licensee to the renewal fees :

Provided that a licence in Grade II shall not be renewed if it has been in force for a total period of three years.

11.

Loss of licence.

- In the event of loss of a licence, the licensee shall immediately send a report to the Central Government of the circumstances in which the licence was lost.

12.

Duplicate licence.

- Where a licence is lost, a duplicate licence may be granted on payment of a fee of Rs. 5.

13.

Cancellation of licence.

- A licence may be cancelled, if -

(1)

the licence is lost on account of the negligence of the licensee, or

(2)

it has not been renewed, or the renewal fee not paid, within the prescribed time :

Provided that, before canceling a licence, the licensee shall be given an opportunity to make his objections.

14.

Licence when transferable.

- A licence shall not be transferable; but the Central Government may permit the transfer of a Grade I licence granted to the Executive Officer of a Wireless Telegraph Amateur Club in favour of his successor, if such successor is eligible to hold a Grade I licence.

15.

Operation of Station.

- No person other than the licensee shall operate an Amateur Wireless Telegraph Station:

Provided that -

(a)

in the presence of the licensee himself, the station may be operated by another licensee holding a valid grade I or grade II licence,

(b)

The amateur wireless telegraph station established by a person in his capacity as an executive of an Amateur Wireless Telegraphy club may also be operated by a person holding a valid first, second or special class Radio Telegraph Operator's Certificate and license or non-commercial certificate of competency or an Amateur Station Operator's Certificate (Grade I) or an Amateur Station Operator's Certificate (Grade II) with the prior permission of the Central Government in writing, in respect of every such person.

16.

Surrender of licence.

- A licence which is cancelled or which has expired shall be surrendered to the Central Government.

17.

Only one licence to be granted.

- No person shall be granted more than one licence at a time :

Provided that the Central Government may relax this rule in the case of a person who is the Executive Officer of an amateur club and who is eligible to hold a licence in Grade I.

18.

Penalty for breach of these rules.

- Any breach of these rules, other than a breach which is an offence under sections 20 or 21 of the Indian Telegraph Act, 1885, shall be punishable with fine which may extend :

(i)

when the person is licensed under the Indian Telegraph Act, 1885, to one thousand rupees and in the case of a continuing breach a further fine of two hundred rupees for every day after the first during the whole or any part of which the breach continues;

(ii)

when a servant of the person so licensed or another person is punishable for the breach, to one-fourth of the amounts specified in clause W.

Annexure I

Application For A Licence To Establish, Maintain And Work An Amateur Wireless Telegraph Station

(See Rule 5)

1. Name of Applicant (in Block Capitals):

Address :

Age :

Occupation :

Nationality (evidence of nationality and two written references as to character should be enclosed).

Father's name & home address :

2. Scientific qualification (if any) of applicant.

Particulars of any experience in working wireless telegraph transmitting apparatus.

Particulars of certificates of Competency as wireless operator held by applicant.

Speed at which applicant can send and receive in the Morse Code.

Particulars of Amateur Licence, if any, held by the applicant.

Particulars of previous applications, if any, made by the applicant for issue of Amateur Licence.

3. Type of licence applied for:

Amateur wireless telegraph station licence (Grade I).

Amateur wireless telegraph station licence (Grade II).

4. Particulars of apparatus to be used :-

(a)

Transmitting :-

The trade name of the set in the case of a standard set bearing a recognised trade name. (Diagrams to be furnished and attached to this form).

(b)

Receiving :-

(c)

Antenna :-

(Including sketch & dimensions and means of support).

5. (i) Power in watts to be used for transmission (A)

(ii)

Maximum watts at input to aerial (if measured).

(iii)

Source of power supply (B).

(a)

Measured at input:-

VoltsAmperes.....

(b)

D/C or A/C.....

(c)

Cycles per second (A/C).....

(A)

Power is measured at the input to the anode circuit of the final RF amplifier.

(B)

If batteries are used, state kind :

(in the case of secondary cells, state capacity and maximum discharge rate. If a local generator is used, state maximum power available, voltage and type of current (AC/DC) and in the case of AC, state periodicity also. If commercial mains power source type employed, maximum power available, voltage and type of current (AC/DC) and in the case of A/C, state periodicity also).

6. Exact location of station :

Transmitting.....Kc/s

.....Kc/s

.....Kc/s

7. Frequencies it is desired to use.

Receiving.....Kc/s

.....Kc/s

.....Kc/s

Transmitting.....Kc/s

8. Frequency range over which apparatus is capable of being adjusted.

ReceivingKc/s

.....Kc/s

.....Kc/s

9. Centre at which the applicant desires to be examined in his proficiency as Amateur Wireless Station Operator :

(Grade I)

(Grade II)

BOMBAY/CALCUTTA /DELHI MADRAS NAGPUR.

Declaration

I undertake to observe the conditions of the licence and hereby certify that the apparatus herein described can and will be worked in accordance with the provisions of the Indian Wireless Telegraphy (Amateur Service) Rules, 1958.

Signature of the Applicant

Date.....

Declaration to Observe Secrecy

Ido solemnly and sincerely declare that I will not, without authorisation, divulge to any person the purport of any message, other than a message intended for the general use of the public, which I may transmit or receive by means of any radio-telegraph or radio-telephone apparatus operated by me or which may come to my knowledge in connection with the operation of the said apparatus.

Place :

Witness :

Signature of Declarant.....

Date

This application, when completed, should be forwarded to the Adviser, Wireless Planning & Coordination, Ministry of Transport and Communications, Government of India, New Delhi.

Annexure II

Licence No.

Dated New Delhi the

India Telegraph Act, 1885

Licence to establish, maintain and work an Amateur Wireless Telegraph Station in India

[See Rule 7]

Shriof.....is hereby licensed to establish, maintain and work a wireless telegraph transmitting and receiving station in the Amateur Service as per details stated below.

The license is granted under the authority of Section 4 of the Indian Telegraph Act, 1885.

The license is governed by the Indian Wireless Telegraphy (Amateur Service) Rules, 1958.

Particulars of the licence :

(i)

Type of the licence granted in the Amateure Service.

(ii)

Location of the Station.

(iii)

Authorised operators.

(iv)

Call Sign.

Power

Allotted bands for Amateur Service (Kc/s)

Frequencies Kc/s

Designation of emission permitted.

Issued on behalf of the Central Government.

Wireless, Planning & Co-ordination.

Ministry of Transport & Communications,

(Departments of Commns. & Civ. Aviation).

Instructions :- To establish, maintain or work an Amateur Station without a valid licence or the failure to comply with any conditions of the licence constitutes an offence under the Indian Telegraph Act, 1885.

2. Prior permission of the Central Government should be obtained before the station is established at a new address. The licence should be sent to the Central Government for amendment of the Address in such case.

3. Use of Supply Mains. - If power for the working of the wireless station is taken from a public electricity supply whether

or not a battery eliminator is used, no direct connection should be made between the supply mains and the aerial.

4. This licence does not cover reception of broadcast programme. (Broadcast Receiving Licence of the appropriate category may be obtained.)

5. Copyright. - This licence does not authorise the Licensee to do any act which is an infringement of any copyright which may exist in the matter transmitted.

6. Nothing contained herein shall be deemed to relieve the licensee of any responsibility for any infringement of patent rights which may be incurred by the use of the licensed apparatus.

Conditions of the amateur wireless telegraph station licence (Grade I & Grade II)

I. Radio-telegraph Conventions. - The licensee shall comply with the provisions of the International Telecommunication Convention in force relating to Amateur Stations.

II. Power and Frequencies. - The power measured at the input to the anode circuit of final H.F. amplifier shall not exceed that specified against each band in the licence. The communications shall be sent only by the type of emission designated and on the frequency or frequencies within the bands specified in the Licence.

III. Frequency Control and Measurement. - The Station shall be equipped for reception as well as transmission. The transmitting apparatus shall invariably be tuned as accurately as possible to the particular authorized frequency on which it is proposed to send, and for this purpose there shall be kept at the station, and used whenever necessary (and on all occasions when the frequency used for sending is changed), a reliable instrument of an approved type for measuring the frequencies of the emissions from the station. The licensee shall take all practicable steps to maintain the accuracy of such measuring instrument.

IV. Non-interference. - The station shall be used in such a manner as not to cause interference with other stations outside the authorised bands. Sending shall at once be discontinued or postponed at the request of any Government or Commercial station.

When telegraphy is being used the arrangement employed for 'keying' the sender shall be such as to reduce to a minimum the risk of interference due to key clicks being produced in neighbouring apparatus. Whenever for any reason, the carrier wave of the sender is being modulated by any system of modulation, care shall be taken to avoid over modulation. Particular care must be taken to avoid unwanted frequency modulation of the carrier frequency. At all times every precaution shall be taken to prevent the radiation of energy of frequencies other than those which are necessary for the type of emission in use. The use of spark sending apparatus is specifically forbidden.

V. Sending Periods. - The station may be operated at any time, provided that no period of sending shall exceed 10 consecutive minutes. Sending shall not commence without listening on the frequency which is to be used in order to ascertain, as far as possible, whether interference is likely to be caused thereby to any other station which may be working.

VI. Log. - A running record shall be kept in a bound book, of all transmissions (See condition II), in the following proforma;

No gaps shall be left between entries in the log :-

Date

Time

Type of emission

Freq.

From

To

Record of tests or experiments

Signature

VII. Receiver. - The station shall always be equipped for the reception of signals sent on frequencies in current use at the station at any time by means of continuous wave telegraphy, telephony and any other type of emission authorised in Condition II.

VIII. (a) Messages. - Communications shall be sent only to stations which are actually cooperating in the Licensee's experiments. They may be sent to such amateur station in this country and also in countries abroad (except where the Administration of a country has prohibited communications of this nature). Communication shall be in plain language and limited to messages of (i) a technical nature relating to tests and (ii) to remarks of a personal character for which, by reason of their unimportance recourse would not normally be made to the public telecommunication systems. Special

gramophone records for reproducing modulations of other types of definite tones may be used for test purposes. Gramophone records may also be used on the condition that only one such record is used during the course of any day and the period of any transmission shall be limited as in condition (VI).

(b)

The use of the apparatus for sending false or misleading calls, or signals, news, advertisements, communications of business statements on topics of political or industrial controversy or any matter which is indecent or obscene or of a seditious tendency or such as is likely to arouse racial, religious, or communal animosity, messages for pecuniary reward or any messages for, or on behalf of, a third party is expressly forbidden. Messages like the reproduction of broadcast programmes or transmissions of entertainment value shall not be sent over the licensed apparatus.

(c)

The Licensee shall not receive any payment (either direct or indirect) for the use of the station or allow the station to be controlled by or used for the purposes of any social or political organization.

IX. Secrecy of Correspondence. - If any message which the Licensee is not entitled to receive is, nevertheless, received the Licensee shall not make known or allow to be made known its contents, its origin or destination, its existence or the fact of its receipt to any person (other than a duly authorised Officer of the I I Central Government or a competent legal tribunal) and shall not reproduce in writing, copy or make any use of such message or allow the same to be reproduced in writing, copied or made use of.

X. Call Signal. - The prefix of nationality, i.e. "VU" shall invariable be included in the call sign which may be sent either morse telegraphy at a speed not greater than (.....) words per minute or telephonically if the station is authorized to use telephony.

The call signal shall be sent for identification purpose at the beginning and at the end of each period of sending.

In calling another station the call signal of that station shall be sent and may be repeated throughout a period of not more than one minute, after which the signal "DE" shall be sent once and the call signal of the calling station three times. This procedure may be repeated but the time taken in calling shall not exceed three minutes without an interval during which the operator shall listen in the band of frequencies in which the call has been made.

In answering a call the call signal of the calling station shall be sent three times, the signal "DE" once and call signal of the answering station three times.

The use of the general call "CQ" is permitted. The word 'test' followed by word 'from' of the procedure signal "DE" and the call signal of the Licensee's station may be sent out when essential for the Licensee's experiments, but this method of calling shall not be continued in any case when a reply is not received from another experimental station within 15 minutes.

When telephony is used the letters of the call signals may be confirmed by the pronunciation of well-known words of which the initial letters are the same as those in the call signals, but words used, in this manner shall not be of facetious character nor be capable of undesirable misinterpretation.

XI. Inspection. - The station shall be subject to the approval of the Central Government and together with the license and the record of transmissions shall be open to inspection at all times by duly authorised officers of the Central Government who shall prove their identity on request. Record of transmissions, this license, and any other data or information pertaining to the station shall be sent to the Central Government, whenever called upon to do so.

XII. Aerial. - Installations shall not cause hazard to flight of aircraft and their heights shall be within the limits specified in Annex. 10 to the Convention of International Civil Aviation published by the International Civil Aviation Organisation. If the Central Government so directs, the licensee of an amateur station shall install and maintain beacon lights on and paint the masts of the station. The jobs shall be executed in the manner prescribed by Govt. and at the cost of the licensee. An aerial which crosses above or is liable to fall upon or to be blown on to an overhead power wire (including electric lighting and tramway wires) or power apparatus shall be guarded to the reasonable satisfaction of the owner of the power wire or power apparatus concerned.

XIII. Control in Emergency. - (a) If and wherever in the opinion of the Central Government a situation shall have arisen in which it is expedient for the public service that the Central Government shall have control over the sending of messages by means of the station, it shall be lawful for them to direct and cause the station to be taken possession of and to direct any duly authorized person to work the apparatus in any manner thought fit and to prevent the Licensee from using it and for these purposes or any of them to cause any part of or all the apparatus forming the station to be removed to such place as they may think fit and any person authorized by them, may from time to time enter the

premises at which the station is maintained for any such purpose as aforesaid.

(b)

The Licensee shall not be entitled to any compensation in respect of the exercise by the Central Government of the powers conferred by this condition, which shall remain in force notwithstanding the withdrawal or modification of the license.

XIV. (a) The Licensee shall not assign, under-let or otherwise dispose of or admit any person to participate in the benefits of this license.

(b)

The Licensee shall indemnify the Central Government against all actions, claims and demands which may be brought or made by any person, body corporate or company in respect of any injury arising from any act licensed or permitted by this license.

(c)

The Central Government may by notice in writing but without assigning any reason revoke and determine these presents or modify them at any time, either by specific notice in writing sent to the Licensee by registered letter post at the address given in the License, or by means of a general notice in the official gazette addressed to any or all holders of licenses for Amateur Wireless Stations.

(d)

In the event of revocation or cancellation, no part of any fee paid [* * * *]

[Omitted by G.S.R. 883, dated 26.5.1967]

will be returned.

[XV.

[Substituted by G.S.R. 883, dated 26.5.1967]

If any question arises in respect of any matter relating to the licence, it shall be referred to the Central Government for decision].

Appendix I

The examination for the Amateurs Station Operator's Certificate (Grade 1) shall comprise in :-

(i)

ability to send and receive correctly by ear messages in plain language in the international morse code at 12 words per minute;

(ii)

Knowledge of radio theory and practice; and

(iii)

Knowledge of regulation applicable to radio communication and operation of amateur stations. Knowledge of prevention of interference (articles 42 and 43 of the Atlantic City Radio Regulations and paras 1-17 of Section XXVI of Indian Wireless Instructions Vol. II).

For the purpose of assessing the receiving ability of the applicant, the test examination will be made for five minutes at the prescribed speed and if the applicant receives the material transmitted correctly for a continuous period of one minute during the transmission, he shall be considered to be successful in the test.

For tests as under items (ii) and (iii) above, a candidate may have to appear for written and/or oral examination.

A fee of Rupees ten shall be charged for the purpose of this examination.

A certificate shall be awarded to the successful candidate in the preforma shown in Appendix III.

Appendix II

The examination for the Amateur Station Operator's Certificate (Grade II) shall comprise in :-

(i)

Ability to send and receive correctly by ear messages in plain language in the international morse code at five words per minute;

(ii)

elementary knowledge of radio theory and practice; and

(iii)

elementary knowledge of regulations applicable to radio communication and operation of amateur stations.

For the purpose of assessing the receiving ability of the applicant, the test examination will be made for five minutes at

Indian Wireless Telegraphy (Amateur Service) Rules, 1958

the prescribed speed and if the applicant receives the material transmitted correctly for a continuous period of one minute during the transmission, he shall be considered to be successful in the test.

For tests as under items (ii) and (iii) above, a candidate may have to appear for written and/or oral examination.

A fee of Rupees five shall be charged for the purpose of this examination.

A certificate shall be awarded to the successful candidate in the proforma shown in Appendix III.

Obverse

Appendix III

No. _____

Seal Government of India Ministry of Transport & Communications (Deptts. of Comms. & Civil Aviation)

Amateur Station Operator's Certificate*] (Grade I)(Grade II)

(Issued under the India Wireless Telegraphy Amateur Service Rules, 1958).

This is to certify that Shri..... has been examined and has qualified in sending and receiving International Morse Code on tone signals at *twelve/five words per minute in clear English and has a *general/elementary knowledge of operating procedure and the regulations regarding the prevention of harmful interference and *general/elementary knowledge of Radio Theory and Practice.

It is also certified that the holder has made a declaration than he will preserve the secrecy of correspondence.

New Delhi:

Signature.

Designation.

Wireless Planning & Coordination, Ministry of Transport & Communications, (Deptts. of Commns. & Civil Aviation).

*To be struck off whenever unnecessary.

ENDORSEMENTS.

REVERSE

valid up to _____

Signature of holder.....

Date of birth

Place of birth

Declaration of Holder

Age.....years.

HeightFeet.....Inches.

Colour of eyes

Colour of hair

Complexion

Any special peculiarities or marks

This Certificate does not constitute a licence to establish, maintain or work a radio station; for that purpose a licence must be obtained from the Ministry of Transport & Communication, New Delhi.

This Certificate may be endorsed, suspended or cancelled at the discretion of the Central Government, if the holder commits a breach of the Indian Wireless Telegraphy (Amateur Service) Rules, 1958, or any regulation lawfully applicable to him in respect of radio-communication or radio-telegraphy or radio-telephone apparatus.

This Certificate should be carefully preserved. In case of loss through gross carelessness, the Central Government may withhold the issue of duplicate copy thereof. In other cases, the Central Government may issue duplicate copies on payment of prescribed fees.

Any person other than the owner thereof becoming possessed of this Certificate is requested to send it to the Adviser, Wireless Planning & Co-ordination, Ministry of Transport and Communications, New Delhi.

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Translation